Your Guide to the Development Application Process



bega valley shire council

Bega Valley Shire Council
PO Box 492, Bega NSW 2550
Phone: 02 6499 2222
Email: council@begavalley.nsw.gov.au
Web: begavalley.nsw.gov.au
ABN 26 987 935 332

Version 2 – September 2025

Acknowledgement

The Bega Valley Shire Council acknowledges and pays our respects to the traditional custodians of the lands, waters and airspace of the shire.

This guideline has been prepared with funding received by Bega Valley Shire Council under the Black Summer Bushfire Recovery grant funded by the Australian Government. Despite best efforts to provide useful information, the planning system is complex, and the guidelines won't cover everything. It is important that you check the relevant State and Council requirements before proceeding with any work and seek professional advice from Council or an independent provider.

Contents

Section 1: Overview

What is the purpose of this guide? **5**
Does my project need approval? **5**
What is development approval? **5**
Why are development approvals required? **6**
What legislation am I bound by? **6**
Environmental Planning and Assessment Act 1979 6
Environmental Planning Instruments (EPIs) 6
Development Control Plans 7
Different roles in the approvals process **7**

Section 2: Where to start

Step 1: Get a professional on board to determine what approval you need **8**
How do I know if I can build? 8
Is my project an exempt development? 8
Is my project a Complying Development? 9
What if my project is not exempt or Complying Development? 9
Step 2: Check for any existing approvals on your land **9**
Step 3: Determine which planning controls may apply to your land **9**
CASE STUDY 1: Modular homes: Choosing the unconventional path 10

Section 3: The submission and assessment process

What do I need to include in my application? **11**
How do I submit my application? **13**
DA submission process **13**
What are the application fees? **14**
What are infrastructure contributions? 14
What other fees are involved? 14
I've submitted my Development Application. Now what? **14**
Approval 14
Refusal 14
Deferred commencement consent 14
DA assessment process **15**
CASE STUDY 2: Navigating change: Future planning with a secondary dwelling (granny flat) 15

Section 4: Bushfire affected properties

Do I still need to get approval to rebuild after a bushfire? **16**
What approvals do I need to rebuild? **16**
Can I use my original plans? **16**
Can I start the demolition process before I submit my Development Application? **17**
Other useful Rural Fire Service resources **17**
CASE STUDY 3: Rebuilding after bushfires: Understanding the Complying Development process 17

Contents continued

Section 5: Important information

Useful resources **18**

Some other common questions **19**

Where can I go for more help? 19

Where can I find other professional help? 19

Can someone else submit my Development Application on my behalf? 20

If my Development Application is approved, how long is the approval valid for? 20

Can I change my plans after my Development Application is approved? 20

What can I do if I don't like Council's decision? 20

Development Application Checklist **21**

Glossary **22**

SECTION 1

Overview

What is the purpose of this guide?

This guide is your go-to tool for navigating the Development Application (DA) process in the Bega Valley Shire. Beyond simplifying the process, this guide can help you avoid potential complications, highlights the importance of having all the necessary information ready from the beginning, and could save you time and money.

Over the following pages, we'll walk you through the steps to rebuilding, renovating or building from scratch, and help you get started on your journey.

Does my project need approval?

In New South Wales, the planning system is aimed at providing guidance regarding where and what you can build. This covers everything from building a secondary dwelling (granny flat) on your property or extending your home, to rebuilding after a natural disaster.

There are three different approval pathways that may apply. It is recommended that you contact Council or seek professional advice from a private certifier to confirm what type of approval is required before you get started.

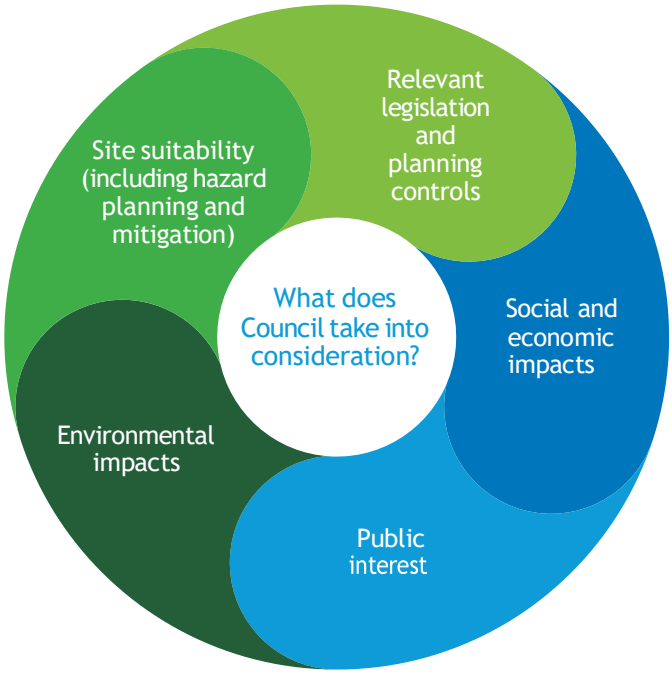
EXEMPT DEVELOPMENT	COMPLYING DEVELOPMENT	DEVELOPMENT APPLICATION
Small, lower impact and lower risk proposals, like a garden shed (No DA required)	Lower impact and lower risk proposals, like a standard house build (No DA required)	More complex proposals that require more detailed consideration (DA required)

What is development approval?

Development approval is the regulatory process that landowners and developers must navigate to obtain permission for construction on a specific piece of land. Typically sought through Council or a private certifier, applicants are required to submit a Development Application (DA) or a Complying Development Certificate application. Both Development Applications and Complying Development Certificates require the preparation of detailed drawings and reports in support of the application.

Why are development approvals required?

Striking a balance between public and private interests is crucial. Thoughtful consideration should be given to whether the new development is consistent with relevant legislation and planning controls, is suitable for the site, is acceptable in relation to the environmental, social, and economic impacts, is in the public interest, and integrates with the existing or desired character of the area.



What legislation am I bound by?

State and local planning laws, regulations, and policies determine what kind of development is allowed on your property.

Environmental Planning and Assessment Act 1979

The Environmental Planning and Assessment Act 1979 (EP&A Act) is the overarching legislation that governs how land use planning is administered in New South Wales.

Environmental Planning Instruments (EPIs)

These are rules that set out what's allowed in specific areas in your local government area.
There are two main types:

- State Environmental Planning Policies (SEPPs): These tackle wide ranging matters for specific areas, but not all of them will affect your project. More information can be found here.
- Local Environmental Plans (LEPs): Each Council has one or more LEPs, which contain a few key pieces of information:
  - It applies a zone to each parcel of land, and details what can be built without approval, with approval and what is prohibited.
  - It provides maps of property or area-specific matters such as historic heritage significance, riparian lands and watercourses, important vegetation and habitat.
  - It establishes design parameters such as how big or tall a building can be.

You can learn more about the legislation here and see mapped matters here

Development Control Plans

The Bega Valley Shire has specific design and planning requirements that must be followed. These requirements cover various aspects such as building design, view sharing, landscaping, waste management and more. Further details can be found here.

Different roles in the approvals process

Note: A Development Application may seek to vary a development standard in the *Bega Valley Local Environmental Plan 2013*, and Council may grant development approval even though the development does not comply. To gain approval you must provide a written submission that demonstrates that compliance with the development standard is unreasonable or unnecessary in the circumstances and there are sufficient environmental planning grounds to justify the non-compliance with the development standard. You can find further details here.

Similarly, under the *Bega Valley Development Control Plan 2013*, a Development Application may seek to vary a development requirement, and Council may grant development approval even though the development does not comply. To gain approval you must provide a written submission that identifies the variation and demonstrates how it will result in a superior environmental outcome, or how the standard is unreasonable or unnecessary in the circumstances, and detail how the objectives of the particular provision are met.



The applicant

Responsible for ensuring all documentation meets Council's requirements

Council

Assesses applications in accordance with state and local legislation

Private certifier

Inspects and approves building work for compliance with standards. Also qualified to assess if the development can be considered Complying Development

Planning consultant

Makes property specific recommendations

Building designer or architect

Prepares plans and specifications

SECTION 2

Where to start

The pre-lodgement stage is crucial for a smooth Development Application process. Starting on the right foot benefits both you and Council by saving valuable time and resources. Council Development Support Services staff are available for application discussions and general development enquiries from 9am to 4:30pm, Monday to Friday, either in person or over the phone, and booking an appointment is recommended. Fees may apply for detailed planning enquiries.

For more information on Council's pre-lodgement advice on more complex development types, visit the Bega Valley Shire Council website.

1 Step 1: Get a professional on board to determine what approval you need

Typically, town planners and building designers or architects can handle the preparation and submission of the Development Application on your behalf. It is recommended to hire a town planner and building designer or architect familiar with planning and design requirements to navigate the application process efficiently. They can help tailor your design and application, potentially saving you time and money.

Hiring a professional can be a wise investment upfront, as it can increase the likelihood of getting your project approved faster and with better results. To find out what each profession does and how they may help, head to the 'Other Common Questions' section towards the end of the document.

How do I know if I can build?

To confirm if your property does have a building entitlement you can email council@begavalley.nsw.gov.au.

Please include your property address, Lot/s and DP if possible and we will provide you with this information. In most cases, this will require a form to be completed and a fee to be paid. This is only required for zones RU1, RU2, RU4, RU5. C3 and C4.

If your proposal is permissible in your zone, you can submit a development application for assessment and determination.

Is my project an exempt development?

Minor building works that fall under exempt development don't require development approval as they are considered very low impact. The eligibility for exempt development depends on property zoning, proposed development scale, and site characteristics. Examples include small decks, garden sheds, fences, window repairs and house painting. However, specific standards and land requirements must be met; otherwise, development approval is necessary. Find out more here.

A helpful tool to identify types of works that don't require development approvals is the Interactive House Portal, which can be found here.

Is my project a Complying Development?

If your project isn't 'exempt development,' see if it qualifies for Complying Development — a streamlined approval for lower impact projects. This consolidates development and construction approvals into a single certificate, meeting Building Code standards. A Complying Development Certificate (CDC) can be obtained from Council or a private certifier without a full Development Application. Examples include standard house construction, secondary dwellings (granny flats), garden sheds, pools, and commercial fit outs.

Find out more information on the *Bega Valley Local Environmental Plan 2013* here.

Find out more information on the *State Environmental Planning Policy (Housing) 2021* here.

What if my project is not exempt or Complying Development?

If your project is not exempt or Complying Development, you will need to submit a Development Application to Council for approval.

The project will be assessed against all relevant state and local legislation as well as the Bega Valley Development Control Plan (DCP), which provides more detailed, localised requirements for development in our community.

2 Step 2: Check for any existing approvals on your land

Checking for previous applications or approvals before buying or developing a property can save you time and money.

You can check this by using Council's online Development Application Tracker or by contacting Council directly. Council will likely have copies of previous house or building plans or approval records that may be of use.

3 Step 3: Determine which planning controls may apply to your land

To access planning information for a property, you can use the NSW Planning Portal's Spatial Viewer— an advanced digital mapping service offering user-friendly, information-packed maps for every property in NSW.

Upon selecting your address in the tool, you can proceed to download a Property Report, encompassing the following details:

- Summary of planning controls
- Detailed planning information
- Other matters affecting the property.



CASE STUDY 1
Modular homes: Choosing the unconventional path

The idea of a manufactured home, also known as a relocatable or transportable home, with its faster turnaround, struck a chord with Josh and Michelle.

By seeking advice from the home manufacturer regarding the need for specific approvals, Josh and Michelle discovered that obtaining a Complying Development Certificate wasn't an option for manufactured homes. Nevertheless, they benefited from a more streamlined approval pathway for manufactured homes compared to traditional construction.

Navigating this regulatory landscape involved two critical steps: submitting a Development Application to Bega Valley Shire Council for the use of the land for a dwelling and obtaining a second approval under *Section 68 of the Local Government Act 1993* for the installation of the manufactured home. This process replaced the usual Construction Certificate and saved Josh and Michelle time and money.

SECTION 3

The submission and assessment process

What do I need to include in my application?

The type of information that accompanies a Development Application or Complying Development Certificate will vary depending on your project and site.

If incorrect or incomplete information is provided during the Development Application assessment, the process will be significantly delayed. It is essential to ensure that all information provided is accurate and complete to avoid any unnecessary delays or issues. When you speak to Council in the pre-lodgement stage, you will be advised of information required. This may include:

Design Plans	Hire a building designer or architect to create necessary design plans for your project, including a site plan, floor plan, elevations, section, and building specifications. Your building professional can assist in compiling and submitting the application, ensuring it includes details like finished floor levels, smoke alarms, and the location of any wood-burning heaters.
A Building Sustainability Index (BASIX) Certificate (if applicable)	New dwellings (and alterations exceeding $50,000 value) also require a Building Sustainability Index (BASIX) Certificate, which certifies the dwelling meets the required energy efficiency standards. A BASIX Certificate is not required for a manufactured home constructed off-site.
Statement of Environmental Effects (SEE) report	All Development Applications need a Statement of Environmental Effects (SEE) report. This report details the proposal, property, likely impacts and how they'll be reduced, and outlines how the development responds to the relevant legislation including the relevant parts of the BVLEP and DCP. It also covers matters not visible on your plans. Council offers a template to assist in gathering essential information for the SEE report. You can find a copy here.
An Aboriginal Heritage Information Management Systems (AHIMS) report	The Aboriginal Heritage Information Management System (AHIMS) is a database that contains information on recorded sites of Aboriginal objects and places. It is used to help identify, manage, conserve, and protect local sites and heritage. Council requires an AHIMS search report to accompany your application in instances where ground disturbance occurs. In addition to a AHIMS report, you will need to address the 5 points outlined in the Bega Valley Development Control Plan 2013, section 5.1.1. You can create an account and obtain here.

A Biodiversity Values Map & Threshold Tool (BMAT) report	For proposals involving the clearing of native vegetation, a Biodiversity Values Map & Threshold Tool (BMAT) report is required. This can be found at the BMAT website. The BMAT website generates a report based on your clearing area. If the report indicates your proposal exceeds the Biodiversity Offsets Scheme threshold, a detailed Biodiversity Development Assessment Report (BDAR) is needed. In this circumstance, it may be better to make changes to your development to reduce the scale of clearing and avoid additional assessment. A BMAT report can be generated here.
Bushfire Attack Level (BAL) report	Development requirements vary depending upon the Bushfire Attack Level (BAL) rating, with higher risk levels requiring more protection measures. The six BAL risk levels range from Low to Flame Zone, and construction costs increase with higher BAL ratings. A BAL Report is mandatory for your Development Application. To check if your property is mapped as bushfire-prone land, use the NSW Planning Portal Spatial Viewer. If building a new dwelling, the RFS' Single Dwelling Application Kit helps identify your BAL rating and required protection measures. Council offers a bushfire attack level assessment service for a fee. Find out more here. For properties in a BAL Flame Zone, you'll need an accredited assessor, listed on the Fire Protection Association Australia register. TIP: If your property is mapped a bushfire prone land, the Bushfire resilience toolkit provides specific steps you can take as a home owner or renter to prepare for a bushfire.
Cost Summary Report	A certified builder's cost summary report outlines estimated project costs, helping Council assess financial viability and determine infrastructure contributions for public infrastructure. Council verifies costs against benchmarks and emphasises accurate costing for insurance coverage. Projects over $3 million require a Quantity Surveyor-prepared Cost Summary.
Other forms	Not all Development Applications are the same, and some other forms that may be required include survey plans showing easements, stormwater plans, a waste-water report, Water Management Act Certificate (where applicable), and concept landscape plans.

Use the online tool to determine if you are located on bushfire prone land.

Development Application Checklist – The DA Matrix

See Councils DA Matrix and Plan and Report Guide for further information on what is required to be submitted with a development application here. The DA Matrix must be provided with a development application that is submitted on the NSW Planning Portal.

How do I submit my application?

Once you have finished all your pre-lodgement planning and compiled the required documentation, and engaged a professional team to help you, it's time to prepare your application for submission. It's crucial at this stage to double-check that all the necessary documentation is completed and meets the requirements to allow for an efficient approval process.

Your Development Application must be submitted to Council online via the NSW Planning Portal. **This process may be demanding, so it is recommended to ask your planning or building professional to lodge the application on your behalf.**

DA submission process



*As per the Minister for Planning's Statement of Expectations

What are the application fees?

Once your application has been submitted in the Portal, reviewed, and considered ready for assessment, a quote will be sent to you for the fee. Council will begin assessing your application upon receipt of these fees.

Your application cost varies based on your project's nature. Key factors affecting fees are:

- the type of permit that you'll be granted (planning, subdivision, planning scheme amendment)
- the cost of the development
- the type of property (single dwelling, multi-dwelling).

You can find a full list of Council fees here.

Additional fees can include a Construction Certificate fee, inspection and engineer fees, plus possible charges for services like water and sewer connections. We strongly encourage you to contact Council to discuss these fees to ensure you are aware of your obligations.

Please ensure you pay the correct amount. Council will not commence assessment of your application until full payment has been made.

What are infrastructure contributions?

Local infrastructure contributions, also known as developer contributions, are fees imposed by councils on new developments. These fees fund various infrastructure projects like parks, community facilities, roads, sidewalks, drainage, and traffic management. Councils develop contributions plans outlining the required infrastructure and estimating costs, determining contribution rates per dwelling or square meter based on this plan.

If you would like to confirm if any contributions will be payable for your project, please contact Council on **02 6499 2222** or **email council@begavalley.nsw.gov.au.**

What other fees are involved?

Miscellaneous fees like BASIX Certificate Portal Fee, Modification of Development Consent Portal Fee and Complying Development Certificate Portal Fee may be applicable. Portal fees can be viewed at NSW Planning Portal Service Fees Page.

I've submitted my Development Application. Now what?

Council will undertake a completeness check where all documentation received is reviewed. Once your application is deemed complete, the assessment process begins. The assessment timeframe depends on the complexity of your project.

The assessment process may take longer if Council requires additional details or amended plans. You will typically have 21 days to provide the necessary information after the request. Once Council reaches a decision, there are **three possible outcomes** for your project:

Approval

Upon consent, you'll receive a Notice of Determination and stamped plans. The development consent will specify conditions for various stages, such as construction or use, like privacy screens or tree protection. You will also need to obtain a Construction Certificate (CC) from the Council or a private certifier before starting construction, ensuring compliance with regulations and standards.

Refusal

You will receive a Notice of Determination with the reasons for refusal for you to review and address before reapplying.

Deferred commencement consent

Council may issue what is called a Deferred Commencement, which is a conditional approval that seeks some additional information before the development can commence. This outcome is rare.

DA Assessment process

Lodgement
Application is checked for completeness

Assessment
- Site visit
- Review for compliance
- Identify issues
- Report back to applicant
- Letter of amendments sent (if necessary)
- Final review
- Report

Determination
- Peer review
- Determination is made
- Contact applicant
- Issue Notice of Determination, stamped plans and any other associated approvals.

Post-Determination
- Construction Certificate
- Notification of Commencement
- Modification of Consent (if desired)

CASE STUDY 2
Navigating change: Future planning with a secondary dwelling (granny flat)

John and Moira found themselves at a crossroads when Moira's elderly mother experienced a severe fall, prompting the couple to reassess their living situation. They made the decision to relocate back to Moira's hometown of Bega and build a granny flat (secondary dwelling) on their new property to provide care for Moira's mother.

John and Moira decided to engage a professional Planning Consultant to explore their idea and understand the necessary approvals. The couple sought clarity on Complying Development application pathways, including considerations such as zoning and planning regulations. They learnt that in the Bega Valley Shire, secondary dwellings are permitted with consent in nearly every zone where you can build a dwelling house.

Moira was grateful for the assistance received and felt the Planning Consultant was extremely helpful in advising the necessary requirements and restrictions. She didn't realise they were restricted by floor area and where the secondary dwelling could be placed on the site. It was also reassuring for her to learn that, in the future, they could rent out the secondary dwelling separately.

The Planning Consultant guided them through the Complying Development application pathway, making them aware of other key aspects such as boundary setbacks and stormwater requirements. By slightly increasing their setbacks, they were able to avoid the need for a Development Application, saving them considerable time and money.

Despite initial concerns about complexities in the application process it unfolded more smoothly than expected thanks to the expertise of their Planning Consultant.



SECTION 4

Bushfire affected properties

This section has been developed to support members of our community who are faced with rebuilding after bushfires.

Bega Valley Shire Council is committed to working together with our community and partners to assist in the recovery process and to strengthen our resilience for the future.

Note: Not all properties that have been affected by bushfire are mapped as bushfire prone. If you were impacted by bushfire, this section provides valuable information on the rebuild application process, demolition considerations, and access to the RFS's Resilience Toolkit for building design tips.

Do I still need to get approval to rebuild after a bushfire?

When it comes to rebuilding, current approval rules and construction standards will apply. Changes to the design and location of a proposed dwelling may be required which could result in a new building that looks different from the original one.

What approvals do I need to rebuild?

Certain houses and additional structures, like sheds, may qualify for a Complying Development Certificate (CDC) during the rebuilding process.

Can I use my original plans?

If you are rebuilding and considering using the exact plans of your previous home, Council may have a copy on file depending on the age of the building. You can request a copy, if available, by submitting a 'Request to view Property File/Development Application File Form', available here.

You will need to have the plans revised (or a new design developed) by a building designer or draftsperson to show your Building Sustainability Index (BASIX) commitments, bushfire construction requirements, and any changes you would like to make to the design.

Can I start the demolition process before I submit my Development Application?

The *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Code SEPP) provides for some demolition activities to be carried out without approval. See here for more details.

Caution: Many homes built prior to 1990 contain asbestos. Asbestos containing materials are dangerous to human health when they are damaged, disturbed or deteriorating. When undertaking building demolition works it is recommended to engage a contractor licensed to undertake asbestos removal work. Guidance on the safe removal and disposal of hazardous materials is available from the NSW Environmental Protection Authority.

Other useful Rural Fire Service resources

- Building in a Bushfire Prone Area
- Building Best Practice Guide

CASE STUDY 3

Rebuilding after bushfires: Understanding the Complying Development process

Sarah returned to her hometown in the Bega Valley in 2017 and achieved her dream of purchasing her first home. Tragically, just two years later, she lost her home in the devastating Black Summer bushfires. Faced with the challenge of rebuilding, Sarah did some research and recognised the need to consider bushfire risk factors in her new build and whether a fast-track approval pathway was an option.

In the aftermath, Sarah prioritised a thoughtful design process. She reviewed the RFS's bushfire resilience toolkit to ensure she was aware of structural and material upgrades she could incorporate into her design. As a result, elements like steel, bricks, and concrete seamlessly integrated into her house design.

To initiate the rebuilding process, Sarah contacted Council to gain a better understanding of the necessary approvals. Council staff clarified that the Complying Development process is suitable for low-impact and routine proposals like hers. This process, utilising a 'checklist-style' review, allows straightforward proposals to be swiftly assessed and approved, which saved Sarah significant time and money.

Seeking support for her rebuilding journey, Sarah enlisted the services of a local architect. Acknowledging the value of expertise in state and local legislation, she preferred entrusting the process to a professional rather than navigating it independently and risking errors in documentation.

Sarah was surprised at how quickly she received approval, underscoring the effectiveness of this streamlined approach in the aftermath of the bushfires. She was able to start rebuilding her home earlier than anticipated and was appreciative of the help she received.



SECTION 5

Important information

Useful resources

NSW Planning Portal Access information about planning and development approvals, application requirements and to lodge your application.	**Spatial Viewer** Download site-specific information including a Property Report.	**FORTIS Household Guide** A technical handbook for new builds. Includes architectural drawings for resilient homes.
myHome Planner An end-to-end home building guide designed to help you research, plan and design your new project home.	**Bega Valley Shire Council** Connect with Council for support and guidance in the approval process and track your DA through the DA tracker.	**YourHome** A guide to building, buying, or renovating a home. It shows how to create a comfortable home with low impact on the environment.
Rural Fire Service: Building in a Bushfire Area Access information on bushfire protection, assessment and the legal framework that governs the planning process for proposed developments on bushfire prone land in NSW.	**Rural Fire Service: Single Dwelling Application Kit** Outlines each step in the bushfire assessment process and provides applicants with a streamlined approach to meeting the requirements of 'Planning for Bush Fire Protection 2019'.	**Bushfire Resilience Toolkit** A toolkit to provide guidance and advice to homeowners wishing to take action to improve the bushfire resilience of their homes.

Some other common questions

Where can I go for more help?

Contact Council's Development Support Services on **02 6499 2222** or email council@begavalley.nsw.gov..au. This is your first port of call for planning and development enquiries. We are here to help you understand the different planning controls that apply to your land.

Where can I find other professional help?

We recommend you seek tailored advice from the following professionals who can help you with the design and planning processes.

PROFESSIONAL	STANDARD DEVELOPMENT	COMPLYING DEVELOPMENT	EXEMPT DEVELOPMENT
Planning Consultant	Consults on zoning regulations, land use planning, and assists in preparing development proposals.	Provides advice on complying development codes and fast-track approval processes.	May not be as necessary but can offer guidance on local regulations.
Architect/Building Designer	Designs and plans buildings according to local regulations.	Prepare plans for complying Development Applications.	May not be required for minor exempt developments.
Surveyor	Provides accurate land surveys and boundary information.	Verifies compliance with site boundaries and setbacks.	Limited role, unless required for boundary clarification.
Draftsperson	Creates detailed technical drawings and plans for construction.	Assists in preparing detailed drawings for complying development.	May not be required for some exempt developments.
Builder	Oversees construction and ensures compliance with building codes.	Executes fast-track construction for complying development.	Limited role as exempt developments typically don't involve extensive construction.
Building Certifier/ Inspector	Verifies compliance with building codes and issues permits.	Fast-track inspections for complying development.	Usually not involved in exempt development.
Bushfire Assessor	Assesses and addresses bushfire risk and compliance.	Required to ensure compliance with bushfire safety standards in certain areas.	May not be directly involved unless the exempt development is in a bushfire-prone zone.

Can someone else submit my Development Application on my behalf?

Yes. When you engage a town planner, builder, architect, or engineer, they commonly undertake the preparation and submission of the Development Application on your behalf.

If my Development Application is approved, how long is the approval valid for?

The Development Application is valid for a period of five years, in which time works must commence or the Consent lapses. Once the development has commenced, the Consent cannot lapse.

Can I change my plans after my Development Application is approved?

You can request changes to your development approval if the modified plan is still substantially the same as the original. Section 4.55 of the *Environmental Planning and Assessment Act 1979* outlines how to make these changes. There are three types of modifications:

- Fixing small errors or miscalculations
- Making changes with minimal impact on the environment
- Other changes that keep the project substantially the same.

To seek changes to your approval, apply through the NSW Planning Portal. Find details on changing your development modification and submit your request there. If your changes don't fit into these categories, you'll need to submit a new Development Application.

What can I do if I don't like Council's decision?

If your Development Application is refused or granted with conditions you find unsatisfactory, start by discussing it with Council. You have the option to request a Review of Determination within six months from the date of the decision. However, this process may take some time and comes with a fee. After the review, you may modify your project design and submit a new application. Alternatively, you have the right to appeal to the Land and Environment Court within six months, but this will likely involve significant cost and time.

Glossary

TERM	DEFINITION
Biodiversity Values Map & Threshold Tool (BMAT) Report	Required for proposals involving native vegetation clearance, assessing biodiversity impact.
Bushfire Attack Level (BAL)	A rating determining building and property protection measures based on the risk of bushfires.
Complying Development	A streamlined approval for lower impact projects that consolidates development and construction approvals.
Consent Authority	The entity (usually the Council) responsible for evaluating Development Applications based on state and local laws.
Construction Certificate (CC)	Certification obtained from the Council or a private certifier before construction, ensuring compliance with regulations and standards.
Cost Summary Report	A report detailing cost estimates for a development project, aiding in financial evaluation and insurance coverage.
Deferred Commencement Consent	Conditional approval requiring additional information before development commencement.
Development Application (DA)	The regulatory process for obtaining permission to construct on a specific piece of land.
Development Control Plans (DCPs)	Detailed design and planning requirements specific to a region, such as building design, landscaping, and waste management.
Environmental Planning and Assessment Act 1979 (EP&A Act)	Legislation outlining the rule-making process and assessment of Development Applications.
Environmental Planning Instruments (EPIs)	Rules governing development in specific areas, including State Environmental Planning Policies (SEPPs) and Local Environmental Plans (LEPs).
Local Infrastructure Contributions	Fees imposed by councils on new developments to fund infrastructure projects.
Local Environmental Plans (LEPs)	LEPs describe the different land zones in an area, such as residential, commercial or industrial land, and clarify what type of development is allowed on each type of land zone.
Notice of Determination	A document conveying the decision regarding a Development Application, indicating approval, refusal, or deferred commencement consent.
Planning Consultant	A professional offering property-specific advice and assistance in navigating exempt or Complying Development.
Pre-lodgement Stage	Initial phase in the Development Application process where discussions with Council occur before formal submission.
Quantity Surveyor	A professional responsible for preparing a cost summary report for development projects exceeding $3 million.

TERM	DEFINITION
Section 4.6 Application	A request for exceptions to development standards under the Bega Valley Local Environmental Plan 2013.
Spatial Viewer (NSW Planning Portal)	An advanced digital mapping service offering detailed maps for every property in NSW through the Planning Portal.
State Environmental Planning Policies (SEPPs)	Policies addressing wide-ranging matters for the whole state, influencing development proposals.
Statement of Environmental Effects (SEE)	A report accompanying a Development Application detailing the proposal, property, likely impacts, and mitigation measures.

bega valley shire council

Zingel Place, Bega

M. PO Box 492 Bega **P.** 02 6499 2222 **F.** 02 6499 2200 **ABN.** 26 987 935 332 **DX.** 4904 Bega

council@begavalley.nsw.gov.au begavalleyshirecouncil www.begavalley.nsw.gov.au